

Committee on National Security Systems

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COMMITTEE ON NATIONAL SECURITY SYSTEMS (CNSS) GOVERNING AND OPERATING PROCEDURES



Committee on National Security Systems

CHAIR

FOREWORD

1. This Directive is issued pursuant to National Security Directive (NSD) No. 42, National Policy for the Security of National Security Telecommunications and Information Systems, dated July 5, 1990, and subsequent authorities.
2. This Directive prescribes the governing and operating procedures for the Committee on National Security Systems (CNSS), its Subcommittee, Panels, Working Groups, and permanent Secretariat. It also defines the interrelationship between and among the Executive Agent (the Secretary of Defense), the National Manager (the Director, National Security Agency), the Executive Secretary, and the Committee.
3. This Directive supersedes CNSS Directive No. 900, Governing Procedures of the Committee on National Security Systems, dated October 2012.
4. Additional copies of this directive are available at the address listed below or via the CNSS website (www.cnss.gov).

/s/

Teresa M. Takai

COMMITTEE ON NATIONAL SECURITY SYSTEMS GOVERNING PROCEDURES

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COMMITTEE ON NATIONAL SECURITY SYSTEMS GOVERNING PROCEDURES

SECTION I – PURPOSE

1. The *Committee on National Security Systems* Directive (CNSSD) No. 900 establishes the governing and operating procedures for the Committee on National Security Systems (CNSS), to include Subcommittee, Panels, Working Groups, and the permanent Secretariat.

SECTION II – AUTHORITY

2. The authority to issue this directive derives from National Security Directive 42, which outlines the roles and responsibilities for securing national security systems (NSS), consistent with applicable law, E.O. 12333, as amended, and other Presidential directives.

3. Nothing in this directive alters or supersedes the authorities of the Director of National Intelligence.

SECTION III – SCOPE

4. This directive delineates the roles, responsibilities, and interrelationships among the Executive Agent, the National Manager, the Executive Secretary, the Committee, and all entities supporting activities of the CNSS.

SECTION IV – DIRECTIVE

5. Membership

a. The CNSS Members are listed in ANNEX A.

b. Criteria for New Members:

1) Members of the Committee must represent a cabinet-level Department/Agency (D/A) or a sub-component of a cabinet-level D/A whose primary mission has significant national security/diplomatic responsibilities.

2) In addition to those members specifically identified in NSD-42 (or their successor organizations), D/As or other Executive Branch organizations eligible to be Members of the Committee include:

- a) Owners/operators of classified computer networks;
- b) Those with significant numbers of national security system users (although they may only be “subscribers”); or
- c) Those having significant oversight or joint/overlapping authorities (not Information Assurance (IA) related) applicable to NSS systems or networks, or National Security Information.

3) Member D/As may seek approval from the Committee to represent other D/As and/or Offices who do not qualify directly to serve as a member of the Committee.

4) Prospective Members must meet the above criteria and be sponsored by a Member. Upon sponsorship, the request for membership will be considered and voted upon at a Committee meeting.

c. In addition to Members, Observers may participate in CNSS activities. Observers represent other D/As from the Executive Branch, Department of Defense (DoD), the Intelligence Community (IC), and Civil Agencies that own, operate, or control NSS. Refer to ANNEX A for a full list of Members and Observers.

d. Prospective Observers must be sponsored by a Member. Prior to attending any Committee meetings, a prospective Observer must submit a request to the Secretariat with a stated mission need based on the sponsoring Member’s organization. The prospective Observer’s request will be considered by the Committee Members. The Committee Chair/Co-Chair must call for a vote on the request at a Committee meeting.

e. Heads of D/As listed in ANNEX A must designate primary and alternate representatives to serve on the Committee and must ensure designees possess, at a minimum, a current Top Secret security clearance with SCI access. Designees must ensure their clearances are certified annually to the National Security Agency (NSA) Office of Security. These designations must be submitted in writing to the CNSS Chair/Co-Chair and state that the individuals must be empowered to make decisions for their D/A. The Secretariat must be notified within 10 working days of any changes in representation.

6. Structure

a. **Committee:** The Committee carries out the work of protecting NSS. It has been established to consider technical matters and develop operating policies, procedures, guidelines, instructions, and standards as necessary to implement NSD-42.

b. **Executive Agent:** The Secretary of Defense serves as the Executive Agent for United States Government (USG) NSS, as designated in NSD-42.

c. **National Manager:** The Director, National Security Agency (NSA), serves as the National Manager, as designated in NSD-42.

d. **Committee Chair/Co-Chair:** The Committee is chaired by the Department of Defense (DoD) Chief Information Officer (CIO), or its successor, who will serve as the Committee Chair, as designated in NSD-42. The Co-Chair is a 2-year rotational position that will alternate between the IC and Civil Agency members. The Committee selects the Co-Chair.

e. **Subcommittee:** The Subcommittee is chartered to make recommendations to the Committee concerning CNSS responsibilities and must be composed of representatives from the participating Members and Observers.

f. **Subcommittee Tri-Chairs:** The Subcommittee is Tri-Chaired by Member agencies representing Defense, Intelligence, and Civil Agency Communities. The Subcommittee Tri-Chairs oversee the work of the Subcommittee and the Working Groups.

g. **Panels:** Panels will be formed to support the Subcommittee, as approved by CNSS membership in the areas of: architecture, safeguarding, information sharing, and operations policy as stated in Section V. Panels will be led by two Co-Chairs and an Alternate who are from Subcommittee Member or Observer agencies, and will be approved by the CNSS Subcommittee Tri-Chairs. The Panel Co-Chairs will oversee the work of their Working Groups or other working bodies as assigned, and will report to the Subcommittee Tri-Chairs. (See ANNEXES F-I.)

h. **Working Groups:** Working Groups are established to identify and address issues to guide the protection of NSS. Working Groups consist of a Chair and/or Co-Chair and Subject Matter Experts (SMEs) from the various Member and Observer organizations. The procedures, clearance requirements, and specific responsibilities for these groups are governed by a separate charter.

i. **Quick Reaction/Tiger Teams:** Quick Reaction Teams (QRT) and Tiger Teams are formed as needed by Working Group Chairs, Subcommittee Chairs, or the Committee Chair/Co-Chair to address short turn-around tasks. QRT tasks are to be completed within 30 days and Tiger Team tasks are to be completed within 90 days.

j. **CNSS Enterprise Risk Management Board (CERMB):** (See ANNEX J)

k. **Observers:** Observers participate at the Committee and Subcommittee levels.

l. **Executive Secretary/Secretariat:** The Executive Secretary and the Secretariat staff is a permanent body that provides administrative support to the Committee, Subcommittee, and subordinate panels and working groups. It is composed of personnel provided by NSA and other personnel from membership D/As, as requested by the Committee Chair/Co-Chair.

7. Meetings

- a. The Committee and Subcommittee must each meet at least quarterly during the calendar year. The Committee Chair/ Co-Chair and the Subcommittee Tri-Chairs may call special meetings of their respective organizations when necessary.
- b. Panels and Working Groups supporting the Committee and Subcommittees meet at the call of their respective Chairs or as established by charters.
- c. The Committee Chair/Co-Chair may convene meetings of Members only, as necessary.
- d. Committee Members or their Alternates are required to attend Committee Meetings and will have two seats at the meeting. The Subcommittee Members are encouraged to attend as the Committee Member's "plus one". Subcommittee Tri-Chairs should attend Committee meetings, and Observers will have one seat at the Committee and Subcommittee meetings.
- e. Subcommittee Tri-Chairs may call Subcommittee meetings as necessary.
- f. Recommended agenda items for the Committee and Subcommittee meetings and for conferences must be submitted to the Secretariat as directed.

8. Voting

- a. The Committee Chair/Co-Chair do not vote. Only Committee Members (or their delegated authority) have voting privileges. Observers are encouraged to comment on issues before the Committee.
- b. Complete voting procedures related to CNSS issuances are detailed in the *Committee on National Security Systems Issuance System Directive*, No. 901 (CNSSD No. 901). All other issues brought to the Committee are considered according to the procedures described below. (Note: Panel charters, which subsequently will become annexes, do not go through the complete issuance voting process. There will be a 15-day Formal Subcommittee Review period after which the Committee has 10 days to vote during the Formal Committee Vote period. There is no formal comment period.)
- c. Generally, issuance review is the only topic voted on electronically. However, the Committee Chair may request that other issues be handled through the electronic voting mechanism.
- d. The Committee must review all documentation pertinent to the action under consideration.
- e. The Committee Chair/Co-Chair may call for a vote at a Committee meeting.

f. To render decisions, a quorum must be present for a meeting of the Committee. A quorum must constitute the presence of more than two-thirds of the Members. All Members present will be polled in whatever order the Committee Chair/Co-Chair deems appropriate, and asked to cast a vote. Members have one vote. There must be no abstentions. Members must neither promise nor cast proxy votes. Approval of 80% of the quorum is required to carry an action forward.

g. The Secretariat must document the vote and include the result in the Summary of the meeting.

9. Compliance Monitoring:

a. The Subcommittee is responsible for managing the CNSS compliance monitoring and compliance deferral process, deferring to the IC Information Security Risk Management Committee (ISRMC) for the TS/SCI fabric.

b. The CNSS Compliance Monitoring Process is carried out through formal procedures. D/As electing to pursue a Deferred Compliance Authorization (DCA) from a CNSS issuance requirement must use the established guidelines (See ANNEX C).

10. Logo:

a. The CNSS logo is a registered trademark and requires authorization for its use.

b. The Secretariat must review and approve the use of the CNSS logo for the Committee Chair/Co-Chair, as appropriate.

SECTION V – RESPONSIBILITIES

11. The Executive Agent must:

a. Ensure the development of plans and programs to fulfill the objectives of NSD-42, including the development of necessary security architectures.

b. Approve and provide minimum security standards and doctrine for NSS.

c. Conduct, approve, or endorse research and development of techniques and equipment to secure NSS.

d. Review and assess the National Manager's recommendations on the proposed NSS budgets for the Executive D/A.

e. Submit, annually, the security status of NSS through the National Security Council (NSC) to the President.

12. The Director, NSA as National Manager must:

- a. Approve and sign CNSS Instructions and Advisory Memoranda.
- b. Maintain a permanent Secretariat composed of personnel from NSA and other personnel from the Executive D/As represented on the Committee, as requested by the CNSS Committee Chair/Co-Chair.
- c. Provide personnel, facilities, and support to the Committee, as requested by the Committee Chair/Co-Chair.
- d. Review and assess the proposed NSS budgets for the Executive D/A.
- e. Oversee the development of NSA Office of Primary Interest's (OPI's) issuances.

13. The Committee Chair/Co-Chair must:

- a. Keep the Executive Agent informed of significant current issues.
- b. Preside over Committee meetings.
- c. Keep Members and Observers apprised of all Committee activities.
- d. Approve and sign CNSS Policies and Directives. **(Note: Only the Committee Chair has this authority.)**
- e. Assign actions and responsibilities as needed to support Committee goals and objectives.
- f. Approve nomination of the Tri-Chairs of the Subcommittee.
- g. Authorize the establishment of permanent and temporary groups to discharge responsibilities.
- h. In response to critical events with policy and operational implications for NSS, convene Committee members, or a subset of Members, to coordinate governance actions to safeguard NSS during events with policy and operational implications for NSS.
- i. Reserve the right to convene a meeting of only voting members.
- j. Approve the Program of Work developed by the Subcommittee.

14. The Committee Membership (Principal and Alternate Members) must:

- NSD-42.
- a. Develop specific objectives and priorities as may be required to implement
 - b. Provide information assurance (IA) guidance to U.S. Government D/As.
 - c. Ensure review of the security status of NSS with respect to established objectives and priorities and inform the Committee Chair/Co-Chair.
 - d. Annually prepare and submit to the Executive Agent an evaluation on the security status of NSS with respect to established objectives and priorities.
 - e. Recommend establishment of special groups to support Committee responsibilities, monitor their progress, and provide guidance.
 - f. Approve the release of U.S. Government cryptologic NSS technical security material, information, and techniques to foreign governments or international organizations.
 - g. Interact and collaborate with other national-level organizations established by Executive Orders to ensure the coordinated execution of assigned responsibilities.
 - h. Be actively involved in all Committee matters.
 - i. Ensure that their organizations are represented at meetings, as necessary.
 - j. Be knowledgeable of the Committee structure and processes.
 - k. Be empowered to make decisions on all Committee issues for their D/A.
 - l. Ensure effective and timely internal D/A coordination of all issues before the Committee.
 - m. Provide their respective organizations' positions on issues before the Committee.
 - n. Apprise their respective organizations of Committee issues.
 - o. Identify new issues of common concern.
 - p. Ensure that Committee issuances, procedures, and responsibilities are implemented within their organizations in accordance with CNSSD No. 901.
 - q. Provide appropriate resources, including funding, personnel, and equipment, in support of the Committee Chair/Co-Chair and CNSS Secretariat responsibilities as required by NSD-42.

r. Have representation on the Subcommittee and on at least one Working Group and/or Tiger Team. The Committee Member is responsible for identifying Primary and Alternate Subcommittee Members from the parent organization.

s. Vote on matters before the Committee.

t. Ensure that, for any contractors sponsored by their own organization to represent them, a copy of the commitment letter and the contractor's signed nondisclosure agreement is forwarded to the Secretariat. All guidelines and constraints must be clearly defined. Contractors may not chair a Working Group.

15. The Subcommittee Tri-Chairs must:

a. Preside over Subcommittee meetings.

b. Ensure the implementation of the Committee's decisions.

c. Approve Subcommittee nominations for Panel leadership.

d. Establish Working Groups and other temporary groups to address specific security issues and remain cognizant of their progress and results.

e. Oversee the Panels and Working Groups assigned to them, respectively.

f. Prioritize activities based on input from the Committee.

g. Select Working Group Chairs/Co-Chairs.

h. Meet periodically with Working Group Chairs/Co-Chairs.

i. Ensure that activities in the CNSS program of work (POW) are carried out and consistent with the Committee's goals and objectives by developing and maintaining a Plan of Action and Milestones (POA&M). Consider any new work to be addressed by the Subcommittee Panels and, if accepted, include the new work in the POA&M.

j. Provide the Committee status reports on Panel and Working Group activities, as necessary.

k. Attend Committee meetings.

16. The Subcommittee Panels must:

a. Provide technical guidance to the Subcommittee Tri-Chairs and Working Groups.

b. Manage a sub-portfolio of issuances in the POA&M on behalf of the CNSS Subcommittee by forming and overseeing Working Groups, QRTs, and Tiger Teams, or identifying an NSA Office of Primary Interest (OPI) (via the National Manager) as necessary.

c. Assist WGs, QRTs and TTs in resolving issues that impact progress toward achieving the POA&M.

d. Periodically review their issuances for currency, relevancy, etc. and recommend update or cancellation to the Subcommittee. In concert with Working Groups, determine which issuances should be updated or canceled, and devise a priority list in consultation with the pertinent Working Group to ensure that all issuances are reviewed at least every 3 years after being signed.

e. Assist with cross-functionality with other panels to ensure that the Working Groups are coordinating properly to prevent duplication of effort and leveraging each others work when applicable.

f. Ensure consistency in the CNSS issuances being developed.

g. Develop strategic budget and implementation plans, as necessary.

h. Recommend courses of action to the Subcommittee Tri-Chairs as a result of POA&M tasks.

i. Ensure that all of its activities, as well as those of any WGs, QRTs and TTs under its direction, are cognizant of and consistent with National-level guidance and policy.

j. Follow the guidance outlined in the descriptions and/or charters in ANNEXES F-I for their respective Panel.

17. The Subcommittee (Principal and Alternate Members) must:

a. Recommend and develop objectives and priorities required to achieve the mandates of NSD-42.

b. Carry out the CNSS Compliance Monitoring Process. Ensure compliance monitoring is tracked in their respective organization via the POA&M.

c. Provide a forum for exchanging IA guidelines among Committee Members and Observers.

d. Provide to the Committee Chair/Co-Chair status reports and identify issues requiring Committee attention.

e. Liaise as appropriate with other bodies chartered with similar responsibilities to ensure the coordinated execution of CNSS assigned responsibilities.

f. Ensure their D/A is notified of all Committee decisions and any extenuating issues addressed.

g. Ensure that their Committee Member is aware of and understands issuances being developed.

h. Recommend a voting option (either concur or non-concur with critical comments) to their respective Committee Member on issues coming up for Committee review and vote.

i. Ensure that their organizations are represented at meetings, as necessary.

j. Meet all suspense actions within the time required.

k. Fully coordinate all responses within their respective organization.

l. Identify SMEs to serve on QRTs, Tiger Teams, and Working Groups.

18. Working Group Chairs must:

a. Regularly update the POA&M.

b. Track and meet the milestones laid out in the POA&M.

c. Elevate concerns and issues to Panel Chair or Co-Chair as required.

d. Adjudicate comments on issuances in accordance with time constraints established in CNSSD No. 901.

e. Responsible for regular interaction with Working Group members, to include conducting status checks on issuances.

19. Working Group Members must:

a. Draft or collaborate on CNSS issuances and/or complete other work as assigned.

b. Each member must keep their Subcommittee representative informed of the status of issuances the Working Group is developing, as well as any other issues that may be pertinent.

c. At least every 3 years after being signed, review all issuances related to the Working Group and suggest to the appropriate Subcommittee Panel which issuances should be updated or canceled. With the Subcommittee Panel, determine a prioritized list of issuances and to be revised or canceled.

d. Ensure that they represent their D/A's position while participating in Working Group activities.

20. Quick Reaction/Tiger Teams must:

- a. Study and make recommendations to resolve specific tasks/issues.
- b. Develop, review, and adjudicate draft issuances, as required.
- c. Complete tasks in 30 days or less (QRT).
- d. Complete tasks in 90 days or less (Tiger Team).

21. The CERMB (See ANNEX J).

22. Observers will:

- a. Attend Committee meetings and participate in Committee activities.
- b. Attend Subcommittee meetings and participate in Subcommittee activities.
- c. Participate in Working Groups, Tiger Teams, QRTs, and the development of issuances.
- d. Provide written comments on issuances going through the review process.
- e. Provide their respective organizations' position on issues presented before the Committee.
- f. Apprise their respective organizations of Committee issues.
- g. Identify new issues of common concern.
- h. Ensure that, for any contractors sponsored by their own organization to represent them, a copy of the commitment letter and the contractor's signed nondisclosure agreement is forwarded to the Secretariat. All guidelines and constraints must be clearly defined. Contractors may not chair a Working Group.

23. The Executive Secretary and/or the Secretariat must:

- a. Inform the Committee Members and Observers on the status of the CNSS POW/POA&M content, structure, processes, and procedures.
- b. Provide administrative support to the Committee, Subcommittee, and supporting groups as appropriate.
- c. Maintain official records of meetings and other activities.

- d. Prepare, distribute, and maintain official records of CNSS correspondence.
- e. Establish and maintain a national system for promulgating operating policies, directives, instructions, and advisory information. The Secretariat is responsible for maintaining the CNSS issuance system in accordance with CNSSD No. 901.
- f. Maintain current CNSS rosters.
- g. Coordinate the review and approval of foreign release of U.S. Government cryptologic NSS technical security material, information, and techniques through the CNSS Members.
- h. Maintain the CNSS web presence on the Internet. Publish CNSS issuances and documentation on the CNSS on-line libraries.
- i. Provide Members and Observers information on all decisions, recommendations, and findings.
- j. Review and approve the use of the CNSS logo for the Committee Chair, as appropriate.
- k. Provide on-going training to the Committee Members regarding the CNSS structure, processes, and voting procedures.
- l. Develop and distribute all yearly meeting schedules for the Committee and Subcommittees.
- m. Send out a call for nominees before the 2-year tenure has expired.
- n. Manage membership contributions. See ANNEX B

Enclosures:

ANNEX A - CNSS Membership

ANNEX B - Management of CNSS Member Contributions

ANNEX C - CNSS Compliance Monitoring and Deferred Compliance

ANNEX D - References

ANNEX E - Five Eyes Nations Participation in CNSS Issuances

ANNEX F - Information Sharing Panel

ANNEX G - Operations Policy Panel

ANNEX H - Architecture Panel

ANNEX I - Safeguarding Panel

ANNEX J - CNSS Enterprise Risk Management Board (CERMB)

ANNEX K- Organizational Diagram

ANNEX A

CNSS MEMBERSHIP

CHAIR

The Committee on National Security Systems is chaired by the Department of Defense Chief Information Officer (CIO).

MEMBERS

The Committee is composed of a voting Member from each of the following:

- The Secretary of State
- The Secretary of the Treasury
- The Secretary of Defense
- The Attorney General
- The Secretary of Commerce
- The Secretary of Transportation
- The Secretary of Energy
- The Secretary of Homeland Security
- Director of the Office of Management and Budget
- Assistant to the President for National Security Affairs
- Director of National Intelligence
- Chairman of the Joint Chiefs of Staff
- Director, Federal Bureau of Investigation
- Administrator, General Services Administration
- The Chief of Staff, United States Army
- The Chief of Naval Operations
- The Chief of Staff, United States Air Force
- Commandant, United States Marine Corps
- Director, Central Intelligence Agency
- Director of the Defense Intelligence Agency
- Director, National Security Agency

OBSERVERS

The Committee is composed of a non-voting Observer from each of the following:

- U.S. Department of Agriculture
- National Geospatial-Intelligence Agency
- Defense Information Systems Agency
- National Institute of Standards and Technology
- Federal Communications Commission
- Nuclear Regulatory Commission
- Information Security Oversight Office
- National Reconnaissance Office

National Archives and Records Administration
Office of Science and Technology Policy
National Aeronautics and Space Administration
United States Strategic Command
Program Manager for the Information Sharing Environment
United Cross Domain Management Office

Subcommittee Members represent the same organizations as the Committee Members.
Subcommittee Observers represent the same organizations as the Committee Observers with the exception of United States Strategic Command.

The following additional organizations also serve as Subcommittee Observers:

Defense Logistics Agency
Defense Threat Reduction Agency
Department of Education
Department of Health and Human Services
Department of Housing and Urban Development
United States Citizenship and Immigration Services
Department of Labor
Department of Veterans Affairs
Drug Enforcement Administration
Environmental Protection Agency
Federal Aviation Administration
Federal Reserve Board
National Cryptologic Representative Defense
Office of Personnel Management
United States Securities and Exchange Commission
United States Customs and Border Protection
United States Cyber Command
United States Secret Service
United States Senate
White House Communications Agency

ANNEX B

MANAGEMENT OF CNSS MEMBER CONTRIBUTIONS

1. Department of Defense, as the Executive Agent and/or Director NSA, as the National Manager, let and administer all contract vehicles to support CNSS work.
2. The Secretariat is responsible for requesting CNSS membership funding and will manage the Technical Task Order (TTO) under an approved contract or serve as the Program Manager on an NSA contract.
3. Committee Members review the Statement of Work for any contract let for CNSS work.
4. TTOs are established to provide general support to CNSS meetings and events, as well as specific contractor support to Working Groups.
5. Requests for contractor support must be submitted through the Secretariat. Any support requested must include requirements documentation requesting general and specific contractor support.
6. The Secretariat provides all Working Group/Tiger Team/QRT contractor support requirement requests to the Subcommittee Tri-Chairs for review and approval.
7. Working Group requirements approved for contractor support must be submitted to the Secretariat to be incorporated into the appropriate contract vehicles.
8. The Secretariat will provide a financial report(s) to the Committee Members and the Subcommittee Tri-Chairs at meetings, or as required.

ANNEX C

CNSS COMPLIANCE MONITORING AND DEFERRED COMPLIANCE GUIDELINES AND PROCEDURES

The Continuous Monitoring and Compliance Assessment Working Group will finalize a documented process for CNSS Compliance Monitoring and Deferred Compliance. That document will become ANNEX C.

Chair/Co-Chair Framing Statements:

- Issuances will have compliance maturity milestones with dates.
- Compliance monitoring will be part of the Subcommittee process in conjunction with the POA&M.
- Deferred compliance will be a Committee responsibility working with Members and the Senior Information Sharing and Safeguarding Steering Committee for agreement on risk management.

ANNEX D

REFERENCES

- a. National Security Directive 42, National Policy for the Security of the National Security Telecommunications and Information Systems, July 1990.
- b. Executive Order 12333, United States Intelligence Activities, as amended by Executive Orders 13284 (2003), 13355 (2004) and 13470 (2008).
- c. Executive Order 13587, Structural Reforms to Improve the Security of Classified Networks and the Responsible Sharing and Safeguarding of Classified Information, October 7, 2011.

ANNEX E

FIVE EYES NATIONS PARTICIPATION IN CNSS ISSUANCES

1. The CNSS will establish, when necessary, a CNSS Foreign Partner Advisory Group to review and consider topics in CNSS issuances deemed to have foreign partner implications. The CNSS Foreign Partner Advisory Group will consist of the Chair of the Working Group responsible for the issuance, the CNSS Secretariat representative to that Working Group, an ODNI CNSS member, a CIA CNSS member, and an NSA Foreign Affairs Directorate (FAD) liaison. A chair of the advisory group will be selected at the kickoff meeting.

2. The CNSS Foreign Partner Advisory Group will, at its discretion, consider topics offered by Five Eyes (Australia, Canada, New Zealand, United Kingdom, & United States) partner representatives, FAD liaisons, the CNSS Working Group Chair, CNSS members, or others, deemed to have a global IA implication.

3. The CNSS, at its discretion, may extend an invitation to the Five Eyes partners to participate in the review and comment of certain Subcommittee draft issuances for topics deemed, by the CNSS Foreign Partner Advisory Group, to have foreign partner implications.

4. Comments on CNSS draft issuances received from Five Eyes partners will be considered and incorporated, as deemed applicable and appropriate by the CNSS Foreign Partner Advisory Group and appropriate CNSS WG. Additionally, Five Eyes partners will not hold any voting privileges for any CNSS issuance.

5. All engagement with Five Eyes partners should be integrated and coordinated with other activities with Five Eyes Partners. This coordination will be accomplished through the CNSS Secretariat, and the CNSS Members' Community Five Eyes partner liaisons; via the NSA Foreign Affairs Directorate liaisons.

ANNEX F**CNSS INFORMATION SHARING PANEL**
CHARTER**SECTION I – Establishment**

1. In accordance with the provisions of National Security Directive (NSD) 42, the Tri-Chairs of the Committee on National Security Systems (CNSS) Subcommittee hereby establish the Information Sharing Panel. The Panel will coordinate with other CNSS panels and working groups to ensure that deliverables are well-aligned with the overall strategies, activities, and priorities of the CNSS.

SECTION II – Purpose and Scope

2. The Information Sharing Panel will serve as a coordination point between the Information Sharing and Access Interagency Policy Committee (ISA IPC) and the CNSS. This arrangement recognizes the interactions between sharing and safeguarding functions, while improving coordination in the development of solutions and capabilities that meet mission, compliance and security requirements. In accomplishing its work, the Panel will liaison with other authoritative Federal information-sharing policy or governance bodies, as necessary, to leverage commonalities and promote consistency of information-sharing-related guidance and implementation across the Federal departments and agencies.

3. The Information Sharing Panel will promote coordination and consistency between, and leverage the efforts of, the CNSS and other organizations with information sharing authorities or a major stake in the effective sharing of information via classified network fabrics, primarily focusing on Secret networks. Such coordination will help to foster the development of common policies and processes across all Federal stakeholders. The Panel will make recommendations for processes to assure that coordination of CNSS issuances with other information sharing stakeholders is efficient and results in guidance that meets the needs of information custodians and system operators.

4. Working with other CNSS Panels and the Subcommittee, the Information Sharing Panel will ensure that the need for effective information sharing is represented in all CNSS activities, and integrated with security and other considerations in issuances, and recommendations of the Subcommittee, as appropriate. Input from the Information Sharing Panel on common requirements for NSS information sharing capabilities will be important for the work of the Architecture Panel, and for CNSS bodies drafting policies, standards, processes, and architectures and making recommendations regarding the balance between risk and information-sharing requirements.

SECTION III – Membership

5. The Panel leadership will be composed of two Co-Chairs and an Alternate. The Panel Co-Chairs must be from a CNSS Member or Observer department or agency, possess a current Top Secret/Sensitive Compartmented Information (TS/SCI) clearance, and must be approved by the CNSS Subcommittee Tri-Chairs.

6. Permanent Panel members shall be Federal employees of a CNSS Member or Observer organizations; must have the endorsement of their organizations' primary CNSS Subcommittee representative and their organizations' Information Sharing Executives, and be approved by the Panel Co-Chairs. Permanent Panel members shall include the Chairs from Working Groups (WGs) assigned to the Panel. All permanent members must possess a current Top Secret/Sensitive Compartmented Information (TS/SCI) clearance. All three Federal communities (DoD, IC, and Civil Agencies [non-Title 10/non-Title 50]) should be represented in the Panel's membership.

7. Panel members should be familiar with and able to represent authoritatively the information sharing policies and priorities of their departments, agencies, or organizations.

8. The Panel members' security offices shall send clearance certifications to the NSA Office of Security in order for the CNSS Secretariat to verify the clearances. Copies of the certifications should also be faxed to the CNSS Secretariat.

9. Guests and Subject Matter Experts (SMEs) will be encouraged to attend appropriate Panel meetings and participate in document reviews. Guests and SMEs attending a Panel meeting must have the appropriate clearances and need-to-know for the documents and topics under review at the meeting. SME and guest attendance must be approved by at least one of the Panel Co-Chairs. Sponsors of guests and SMEs shall ensure compliance with these requirements.

10. Use of contractors:

a. Although Member and Observer organizations are discouraged from exclusively using contractors as representatives to attend and participate in the Panel meetings or related activities, contractors may participate as SMEs in the Panel meetings.

b. Contractors may not attend or participate in Government-only sessions.

c. Contractors, including employees of Federally Funded Research and Development Corporations (FFRDCs), may lead Tiger Teams (TTs) or Quick Response Teams (QRTs) established by this Panel.

d. Contractors, including employees of FFRDCs, may not lead WGs.

SECTION IV – Panel Responsibilities

11. The Panel must:

- a. Provide technical guidance to the Subcommittee Tri-Chairs and WGs.
- b. Manage a sub-portfolio of issuances in the Plan of Action and Milestones (POA&M) on behalf of the CNSS Subcommittee by forming and overseeing WGs, QRTs, and TTs, or identifying an NSA Office of Primary Interest (OPI) (via the National Manager).
- c. Assist WGs, QRTs and TTs in resolving issues that impact progress toward achieving the POA&M.
- d. Periodically review its issuances for currency, relevancy, etc., and recommend update or cancellation to the Subcommittee. In concert with WGs, determine which issuances should be updated or cancelled, and devise a priority list in consultation with the pertinent WG to ensure that all issuances are reviewed at least every three years after being signed.
- e. Assist with cross-functionality within other panels to ensure that the WGs are coordinating properly to prevent duplication of effort.
- f. Ensure consistency in the CNSS issuances being developed.
- g. Develop strategic budget and implementation plans, as necessary.
- h. Recommend courses of action to the Subcommittee Tri-Chairs as a result of POA&M tasks.
- i. Ensure that all of its activities, as well as those of any WGs, QRTs and TTs under its direction, are cognizant of and consistent with National-level guidance and policy.

12. The Panel Co-Chairs must:

- a. Schedule and coordinate meetings for the Panel with at least one co-chair present to conduct the meeting.
- b. Approve the attendance of all invited guests, briefers, and SMEs.
- c. In coordination with the Subcommittee Tri-chairs, establish WGs, as necessary, to draft or collaborate on CNSS issuances and/or complete other work as assigned by the Subcommittee.
- d. Establish TTs and QRTs, as necessary, to study, address, and recommend

actions on limited, specific initiatives.

e. Ensure the CNSS POA&M accurately captures the actions and deliverables assigned to the Panel and their WGs.

13. The Panel Members must:

a. Attend meetings regularly or have a properly cleared alternate who is empowered to act with plenary powers in the absence of the regular Panel member.

b. Know, understand, and be empowered to articulate the views of their department or Agency.

c. Work with Panel chairs to scope new issuances to insure consistency with other issuances and preclude duplication.

d. Assist the Subcommittee Tri-Chairs in mediating critical comments, as needed.

e. Sponsor guests, briefers, and SMEs must request approval from the Panel Co-Chairs at least one week in advance of a scheduled meeting and provide proof of security clearance commensurate with the planned level of discussion (up to TS/SCI).

f. If representing their department or agency in other external USG forums that share pertinent and coinciding issues, bring back and share relevant information with the CNSS Panel (or WG) to help jumpstart CNSS issuances and ensure consistency of approach for USG issues.

SECTION V – Meetings

14. At a minimum, a meeting will be scheduled every other month; however, at the discretion of the Co-Chairs, meetings may be convened more frequently or at the request of a Panel member.

15. Issues before the Panel shall be decided by a quorum. A quorum shall be 2/3 of the permanent Panel members present (physical and virtual) at that particular meeting.

16. A simple majority will decide the issue.

SECTION VI - Staff Support

17. The Panel shall be supported primarily by the Classified Information Sharing and Safeguarding Office (CISSO), in coordination with the CNSS Secretariat. Information sharing SME support for the Information Sharing Panel will be provided primarily by the CISSO, which is staffed by assignees from the Senior Information Sharing and Safeguarding Steering

Committee, and by limited contractor support provided by PM-ISE. PM-ISE will also provide meeting facilities in Washington, DC, subject to availability. The CISSO shall assign a staff member to the Panel with the following duties and responsibilities:

- a. Attend and facilitate Panel meetings that are established by the Co-Chairs.
- b. Provide direct support to the Co-Chairs.
- c. Prepare, coordinate, and disseminate notices of meetings, meeting agendas, minutes, summaries, and other reports.
- d. Maintain a current Panel membership roster and distribution list.
- e. Maintain official records of Panel meetings and activities.
- f. Assist the Co-Chairs in identifying, developing, and presenting pertinent issues, documents, and recommendations for consideration to the Subcommittee.
- g. Provide the necessary information for passing of clearances of meeting attendees and guests.

ANNEX G

CNSS OPERATIONS POLICY PANEL CHARTER

SECTION I – Establishment

1. In accordance with the provisions of National Security Directive (NSD) 42, the Tri-Chairs of the Committee on National Security Systems (CNSS) Subcommittee hereby establish the Operations Policy Panel. The Panel will coordinate with other CNSS panels and working groups to ensure that deliverables are well-aligned with the overall strategies, activities, and priorities of the CNSS.

SECTION II – Purpose and Scope

2. The purpose of the Panel is to oversee CNSS activities and issuance development in areas such as incident management and operational coordination, situational awareness (including threat states of NSS networks and critical infrastructure), operations management, status reporting, emergency response operating procedures, operational relevance of educational content and standards, training standards, and IA awareness training normalization.

3. The Panel will oversee the development of operations policies, standards, and procedures to facilitate coordination with organizations across the Federal Government on strategic network and security issues which may impact NSS operations (as described above) in order to ensure the CNSS membership is informed of potential operational issues. These NSS coordination procedures may also include interacting with the Comprehensive National Cybersecurity Initiative (CNCI) 5 cyber operations centers and the National Cyber Incident Response Plan's interagency Cyber Unified Coordination Group, but will not duplicate any of their assigned duties or responsibilities. The Panel will liaise with other authoritative Federal policy governance bodies, as necessary, to leverage commonalities and promote consistency in policies, standards, and procedures impacting across the Federal departments and agencies. The Panel will also work with the CNSS Enterprise Risk Management Board (CERMB) and the cyber operations centers to ensure that as risk management policy, standards, processes, and recommendations are made, they are considered as potential precedent in the development of CNSS operations policies or standards. In addition, this Panel will work with the National Initiative for Cybersecurity Education (NICE) (CNCI 8). The Cyber security workforce framework developed by NICE defines cybersecurity work roles, knowledge, skills, and abilities. It will serve as the basis for developing education and training standards for the CNSS community.

SECTION III – Membership

4. The Panel leadership will be composed of two Co-Chairs and an Alternate. The Panel Co-Chairs must be from a CNSS Member or Observer department or agency, possess a current Top Secret/Sensitive Compartmented Information (TS/SCI) clearance, and must be approved by the CNSS Subcommittee Tri-Chairs.

5. Permanent Panel members shall be composed of Chairs from the Working Groups (WGs) assigned to the Panel. All members shall be Federal employees of a CNSS Member or Observer organization, and must have the endorsement of their organization's primary CNSS Subcommittee Representative. All three Federal communities (DoD, IC, and Civil Agencies [non-Title 10/non-Title 50]) should be represented in the Panel's membership. WG chairs must possess a TS/SCI clearance.

6. Panel members should be familiar with the policies and priorities of their Department, Agency, or organization and be empowered to represent them authoritatively.

7. The Panel members' security offices shall send clearance certifications to the NSA Office of Security in order for the CNSS Secretariat to verify the clearances. Copies of the certification should also be faxed to the CNSS Secretariat.

8. Guests and Subject Matter Experts (SMEs) will be encouraged to attend appropriate Panel meetings and participate in document reviews. Guests and SMEs attending a Panel meeting must have the appropriate clearances and need-to-know for the documents and topics under review at the meeting. SME and guest attendance must be approved by at least one of the Panel Co-Chairs. Sponsors of guests and SMEs shall ensure compliance with these requirements.

9. Use of contractors:

a. Although Member and Observer organizations are discouraged from exclusively using contractors as representatives to attend and participate in the Panel meetings or related activities, contractors may participate as SMEs in the Panel meetings.

b. Contractors may not attend or participate in Government-only sessions.

c. Contractors, including employees of Federally Funded Research and Development Corporations (FFRDCs), may lead Tiger Teams (TTs) or Quick Response Teams (QRTs) established by this Panel.

d. Contractors, including employees of FFRDCs, may not lead WGs.

SECTION IV – Panel Responsibilities

10. The Panel must:

- a. Provide technical guidance to the Subcommittee Tri-Chairs and WGs.
- b. Manage a sub-portfolio of issuances in the Plan of Action and Milestones (POA&M) on behalf of the CNSS Subcommittee by forming and overseeing WGs, QRTs, and TTs, or identifying an NSA Office of Primary Interest (OPI) (via the National Manager).
- c. Assist WGs, QRTs and TTs in resolving issues that impact progress toward achieving the POA&M.
- d. Periodically review its issuances for currency, relevancy, etc., and recommend update or cancellation to the Subcommittee. In concert with WGs, determine which issuances should be updated or cancelled, and devise a priority list in consultation with the pertinent WG to ensure that all issuances are reviewed at least every three years after being signed.
- e. Assist with cross-functionality within other panels to ensure that the WGs are coordinating properly to prevent duplication of effort.
- f. Ensure consistency in the CNSS issuances being developed.
- g. Develop strategic budget and implementation plans, as necessary.
- h. Recommend courses of action to the Subcommittee Tri-Chairs as a result of POA&M tasks.
- i. Ensure that all of its activities, as well as those of any WGs, QRTs and TTs under its direction, are cognizant of and consistent with National-level guidance and policy.
- j. Identify policies, standards, and procedures to address employment of shared services and enterprise applications (including cloud-based services and architectures) to support secure operation of NSS.
- k. In coordination with the other CNSS Panels, identify policies, standards, and procedures to facilitate efficient NSS operations on the Secret Fabric.
- l. Work with NICE to establish educational training standards for IA professionals.

11. The Panel Co-Chairs must:

- a. Schedule and coordinate meetings for the Panel with at least one co-chair present to conduct the meeting.
- b. Approve the attendance of all invited guests, briefers, and SMEs.

c. In coordination with the Subcommittee Tri-chairs, establish WGs, as necessary, to draft or collaborate on CNSS issuances and/or complete other work as assigned by the Subcommittee.

d. Establish TTs and QRTs, as necessary, to study, address, and recommend actions on limited, specific initiatives.

e. Ensure the CNSS POA&M accurately captures the actions and deliverables assigned to the Panel and their WGs.

12. The Panel Members must:

a. Attend meetings regularly or have a properly cleared alternate who is empowered to act with plenary powers in the absence of the regular Panel member.

b. Know, understand, and be empowered to articulate the views of their department or agency.

c. Work with Panel chairs to scope new issuances to insure consistency with other issuances and preclude duplication.

d. Assist the Subcommittee Tri-Chairs in mediating critical comments, as needed.

e. Sponsor guests, briefers, and SMEs and request approval from the Panel Co-Chairs at least one week in advance of a scheduled meeting and provide proof of security clearance commensurate with the planned level of discussion (up to TS/SCI).

f. If representing their department or agency in other external USG forums that share pertinent and coinciding issues, bring back and share relevant information with the CNSS Panel (or WG) to help jumpstart CNSS issuances and ensure consistency of approach for USG issues.

SECTION V – Meetings

13. At a minimum, a meeting will be scheduled every other month; however, at the discretion of the Co-Chairs, meetings may be convened more frequently or at the request of a Panel member.

14. Issues before the Panel shall be decided by a quorum. A quorum shall be 2/3 of the permanent Panel members present (physical and virtual) at that particular meeting.

15. A simple majority will decide the issue.

SECTION VI - Staff Support

16. The Panel shall be supported by the CNSS Secretariat, which will provide all required policy, administrative, and editorial support. The CNSS Secretariat shall assign a staff member to the Panel with the following duties and responsibilities:

- a. Attend and facilitate Panel meetings that are established by the Co-Chairs.
- b. Provide direct support to the Co-Chairs.
- c. Prepare, coordinate, and disseminate notices of meetings, meeting agendas, minutes, summaries, and other reports.
- d. Maintain a current Panel membership roster and distribution list.
- e. Maintain official records of Panel meetings and activities.
- f. Assist the Co-Chairs in identifying, developing, and presenting pertinent issues, documents, and recommendations for consideration to the Subcommittee.
- g. Provide the necessary information for passing of clearances of meeting attendees and guests.

ANNEX H

CNSS ARCHITECTURE PANEL **CHARTER**

SECTION I – Establishment

1. In accordance with the provisions of National Security Directive (NSD) 42, the Tri-Chairs of the Committee on National Security Systems (CNSS) Subcommittee hereby establish the Architecture Panel. The Panel will coordinate with other CNSS panels and working groups to ensure that deliverables are well-aligned with the overall strategies, activities, and priorities of the CNSS.

SECTION II – Purpose and Scope

2. The purpose of the Panel is to oversee CNSS activities and issuance development in areas such as enterprise architecture, system security engineering, public key infrastructure, identity and access management architectures, wireless communications, mobile devices, and cryptographic modernization.

3. The Panel will coordinate with organizations across the Federal Government to ensure CNSS architecture efforts are comprehensive and conform to all applicable Federal statutes and Executive Orders and are complementary to other Federal guidance. The Panel will liaise with other architectural forums, as necessary, to leverage commonalities and promote consistency across the Federal departments and agencies.

SECTION III – Membership

4. The Panel leadership will be composed of two Co-Chairs and an Alternate. The Panel Co-Chairs must be from a CNSS Member or Observer department or agency, possess a current Top Secret/Sensitive Compartmented Information (TS/SCI) clearance, and must be approved by the CNSS Subcommittee Tri-Chairs.

5. Permanent Panel members shall be composed of Chairs from the Working Groups (WGs) assigned to the Panel. All members shall be Federal employees of a CNSS Member or Observer organization, and must have the endorsement of their organization's primary CNSS Subcommittee Representative. All three Federal communities (DoD, IC, and Civil Agencies [non-Title 10/non-Title 50]) should be represented in the Panel's membership. WG chairs must possess a TS/SCI clearance.

6. Panel members should be familiar with the policies and priorities of their Department, Agency, or organization and be empowered to represent them authoritatively.

7. The Panel members' security offices shall send clearance certifications to the NSA Office of Security in order for the CNSS Secretariat to verify the clearances. Copies of the certification should also be faxed to the CNSS Secretariat.

8. Guests and Subject Matter Experts (SMEs) will be encouraged to attend appropriate Panel meetings and participate in document reviews. Guests and SMEs attending a Panel meeting must have the appropriate clearances and need-to-know for the documents and topics under review at the meeting. SME and guest attendance must be approved by at least one of the Panel Co-Chairs. Sponsors of guests and SMEs shall ensure compliance with these requirements.

9. Use of contractors:

a. Although Member and Observer organizations are discouraged from exclusively using contractors as representatives to attend and participate in the Panel meetings or related activities, contractors may participate as SMEs in the Panel meetings.

b. Contractors may not attend or participate in Government-only sessions.

c. Contractors, including employees of Federally Funded Research and Development Corporations (FFRDCs), may lead Tiger Teams (TTs) or Quick Response Teams (QRTs) established by this Panel.

d. Contractors, including employees of FFRDCs, may not lead WGs.

SECTION IV – Panel Responsibilities

10. The Panel must:

a. Provide technical guidance to the Subcommittee Tri-Chairs and WGs.

b. Manage a sub-portfolio of issuances in the Plan of Action and Milestones (POA&M) on behalf of the CNSS Subcommittee by forming and overseeing WGs, QRTs, and TTs, or identifying an NSA Office of Primary Interest (OPI) (via the National Manager).

c. Assist WGs, QRTs and TTs in resolving issues that impact progress toward achieving the POA&M.

d. Periodically review its issuances for currency, relevancy, etc., and recommend update or cancellation to the Subcommittee. In concert with WGs, determine which issuances should be updated or cancelled, and devise a priority list in consultation with the pertinent WG to ensure that all issuances are reviewed at least every three years after being signed.

e. Assist with cross-functionality within other panels to ensure that the

WGs are coordinating properly to prevent duplication of effort.

- f. Ensure consistency in the CNSS issuances being developed.
- g. Develop strategic budget and implementation plans, as necessary.
- h. Recommend courses of action to the Subcommittee Tri-Chairs as a result of POA&M tasks.
- i. Ensure that all of its activities, as well as those of any WGs, QRTs and TTs under its direction, are cognizant of and consistent with National-level guidance and policy.
- j. Identify opportunities and facilitate employment of shared services and enterprise applications (including cloud-based services and architectures).
- k. Ensure development of a common architectural framework for National Security Systems.
- l. Partner with other key identity management bodies to harmonize and baseline the NSS community's identity credential and access management policies and guidelines.
- m. Establish baseline PKI interoperability and information sharing requirements for NSS in order to sustain a level of trusted communications between the U.S. and our International Partners. Coordination with the ODNI must occur prior to any contact or negotiations with international partners in order to determine negotiated national positions.
- n. Ensure that development and coordination of CNSS Civil, DoD, and IC cryptographic replacement/investment strategies are synchronized to ensure continuing protections and interoperability for NSS.
- o. Ensure the development and updating of CNSS issuances to address opportunities brought about through wireless technology to the NSS environment and address the challenges to NSS security.

11. The Panel Co-Chairs must:

- a. Schedule and coordinate meetings for the Panel with at least one co-chair present to conduct the meeting.
- b. Approve the attendance of all invited guests, briefers, and SMEs.
- c. In coordination with the Subcommittee Tri-chairs, establish WGs, as necessary, to draft or collaborate on CNSS issuances and/or complete other work as assigned by the Subcommittee.

d. Establish TTs and QRTs, as necessary, to study, address, and recommend actions on limited, specific initiatives.

e. Ensure the CNSS POA&M accurately captures the actions and deliverables assigned to the Panel and their WGs.

12. The Panel Members must:

a. Attend meetings regularly or have a properly cleared alternate who is empowered to act with plenary powers in the absence of the regular Panel member.

b. Know, understand, and be empowered to articulate the views of their department or agency.

c. Work with Panel chairs to scope new issuances to insure consistency with other issuances and preclude duplication.

d. Assist the Subcommittee Tri-Chairs in mediating critical comments, as needed.

e. Sponsor guests, briefers, and SMEs and request approval from the Panel Co-Chairs at least one week in advance of the scheduled meeting and provide proof of security clearance commensurate with the planned level of discussion (up to TS/SCI).

f. If representing their department or agency in other external USG forums that share pertinent and coinciding issues, bring back and share relevant information with the CNSS Panel (or WG) to help jumpstart CNSS issuances and ensure consistency of approach for USG issues.

SECTION V – Meetings

13. At a minimum, a meeting will be scheduled every other month; however, at the discretion of the Co-Chairs, meetings may be convened more frequently or at the request of a Panel member.

14. Issues before the Panel shall be decided by a quorum. A quorum shall be 2/3 of the permanent Panel members present (physical and virtual) at that particular meeting

15. A simple majority will decide the issue.

SECTION VI - Staff Support

16. The Panel shall be supported by the CNSS Secretariat, which will provide all required policy, administrative, and editorial support. The CNSS Secretariat shall assign a staff member to the Panel with the following duties and responsibilities:

- a. Attend and facilitate Panel meetings that are established by the Co-Chairs.
- b. Provide direct support to the Co-Chairs.
- c. Prepare, coordinate, and disseminate notices of meetings, meeting agendas, minutes, summaries, and other reports.
- d. Maintain a current Panel membership roster and distribution list.
- e. Maintain official records of Panel meetings and activities.
- f. Assist the Co-Chairs in identifying, developing, and presenting pertinent issues, documents, and recommendations for consideration to the Subcommittee.
- g. Provide the necessary information for passing of clearances of meeting attendees and guests.

ANNEX I

CNSS SAFEGUARDING PANEL CHARTER

SECTION I – Establishment

1. In accordance with the provisions of National Security Directive (NSD) 42, the Tri-Chairs of the Committee on National Security Systems (CNSS) Subcommittee hereby establish the Safeguarding Panel. The Panel will coordinate with other CNSS panels and working groups to ensure that deliverables are well-aligned with the overall strategies, activities, and priorities of the CNSS.

SECTION II – Purpose and Scope

2. The purpose of the Panel is to oversee CNSS activities and issuance development in areas such as information system security, risk management standardization, protection of space systems, insider threat, telephony, classified information spillage, TEMPEST, supply chain risk, standardized security categorization and controls for NSS, and information system authorization.

3. The Panel will coordinate with organizations across the Federal Government to ensure CNSS safeguarding efforts are comprehensive and conform to all applicable Federal statutes and Executive Orders and are complementary to other Federal guidance. The Panel will liaise with other safeguarding forums, as necessary, to leverage commonalities and promote consistency across the Federal departments and agencies.

SECTION III – Membership

4. The Panel leadership will be composed of two Co-Chairs and an Alternate. The Panel Co-Chairs must be from a CNSS Member or Observer department or agency, possess a current Top Secret/Sensitive Compartmented Information (TS/SCI) clearance, and must be approved by the CNSS Subcommittee Tri-Chairs.

5. Permanent Panel member shall be composed of Chairs from the Working Groups (WGs) assigned to the Panel. All members shall be Federal employees of a CNSS Member or Observer organization, and must have the endorsement of their organization's primary CNSS Subcommittee Representative. All three Federal communities (DoD, IC, and Civil Agencies [non-Title 10/non-Title 50]) should be represented in the Panel's membership. WG chairs must possess a TS/SCI clearance.

6. Panel members should be familiar with the policies and priorities of their Department, Agency, or organization and be empowered to represent them authoritatively.

7. The Panel members' security offices shall send clearance certifications to the NSA Office of Security in order for the CNSS Secretariat to verify the clearances. Copies of the certification should also be faxed to the CNSS Secretariat.

8. Guests and Subject Matter Experts (SMEs) will be encouraged to attend appropriate Panel meetings and participate in document reviews. Guests and SMEs attending a Panel meeting must have the appropriate clearances and need-to-know for the documents and topics under review at the meeting. SME and guest attendance must be approved by at least one of the Panel Co-Chairs. Sponsors of guests and SMEs shall ensure compliance with these requirements.

9. Use of contractors:

a. Although Member and Observer organizations are discouraged from exclusively using contractors as representatives to attend and participate in the Panel meetings or related activities, contractors may participate as SMEs in the Panel meetings.

b. Contractors may not attend or participate in Government-only sessions.

c. Contractors, including employees of Federally Funded Research and Development Corporations (FFRDCs), may lead Tiger Teams (TTs) or Quick Response Teams (QRTs) established by this Panel.

d. Contractors, including employees of FFRDCs, may not lead WGs.

SECTION IV – Panel Responsibilities

10. The Panel must:

a. Provide technical guidance to the Subcommittee Tri-Chairs and WGs.

b. Manage a sub-portfolio of issuances in the Plan of Action and Milestones (POA&M) on behalf of the CNSS Subcommittee by forming and overseeing WGs, QRTs, and TTs, or identifying an NSA Office of Primary Interest (OPI) (via the National Manager).

c. Assist WGs, QRTs and TTs in resolving issues that impact progress toward achieving the POA&M.

d. Periodically review its issuances for currency, relevancy, etc., and recommend update or cancellation to the Subcommittee. In concert with WGs, determine which issuances should be updated or cancelled, and devise a priority list in consultation with the pertinent WG to ensure that all issuances are reviewed at least every three years after being signed.

e. Assist with cross-functionality within other panels to ensure that the

WGs are coordinating properly to prevent duplication of effort.

- f. Ensure consistency in the CNSS issuances being developed.
- g. Develop strategic budget and implementation plans, as necessary.
- h. Recommend courses of action to the Subcommittee Tri-Chairs as a result of POA&M tasks.
- i. Ensure that all of its activities, as well as those of any WGs, QRTs and TTs under its direction, are cognizant of and consistent with National-level guidance and policy.

11. The Panel Co-Chairs must:

- a. Schedule and coordinate meetings for the Panel with at least one co-chair present to conduct the meeting.
- b. Approve the attendance of all invited guests, briefers, and SMEs.
- c. In coordination with the Subcommittee Tri-chairs, establish WGs, as necessary, to draft or collaborate on CNSS issuances and/or complete other work as assigned by the Subcommittee.
- d. Establish TTs and QRTs, as necessary, to study, address, and recommend actions on limited, specific initiatives.
- e. Ensure the CNSS POA&M accurately captures the actions and deliverables assigned to the Panel and their WGs.

12. The Panel Members must:

- a. Attend meetings regularly or have a properly cleared alternate who is empowered to act with plenary powers in the absence of the regular Panel member.
- b. Know, understand, and be empowered to articulate the views of their department or agency.
- c. Work with Panel chairs to scope new issuances to insure consistency with other issuances and preclude duplication.
- d. Assist the Subcommittee Tri-Chairs in mediating critical comments, as needed.

e. Sponsor guests, briefers, and SMEs and request approval from the Panel Co-Chairs at least one week in advance of a scheduled meeting and provide proof of security clearance commensurate with the planned level of discussion (up to TS/SCI).

f. If representing their department or agency in other external USG forums that share pertinent and coinciding issues, bring back and share relevant information with the CNSS Panel (or WG) to help jumpstart CNSS issuances and ensure consistency of approach for USG issues.

SECTION V – Meetings

13. At a minimum, a meeting will be scheduled every other month; however, at the discretion of the Co-Chairs, meetings may be convened more frequently or at the request of a Panel member.

14. Issues before the Panel shall be decided by a quorum. A quorum shall be 2/3 of the permanent Panel members present (physical and virtual) at that particular meeting.

15. A simple majority will decide the issue.

SECTION VI - Staff Support

16. The Panel shall be supported by the CNSS Secretariat, which will provide all required policy, administrative, and editorial support. The CNSS Secretariat shall assign a staff member to the Panel with the following duties and responsibilities:

- a. Attend and facilitate Panel meetings that are established by the Co-Chairs.
- b. Provide direct support to the Co-Chairs.
- c. Prepare, coordinate, and disseminate notices of meetings, meeting agendas, minutes, summaries, and other reports.
- d. Maintain a current Panel membership roster and distribution list.
- e. Maintain official records of Panel meetings and activities.
- f. Assist the Co-Chairs in identifying, developing, and presenting pertinent issues, documents, and recommendations for consideration to the Subcommittee.
- g. Provide the necessary information for passing of clearances of meeting attendees and guests.

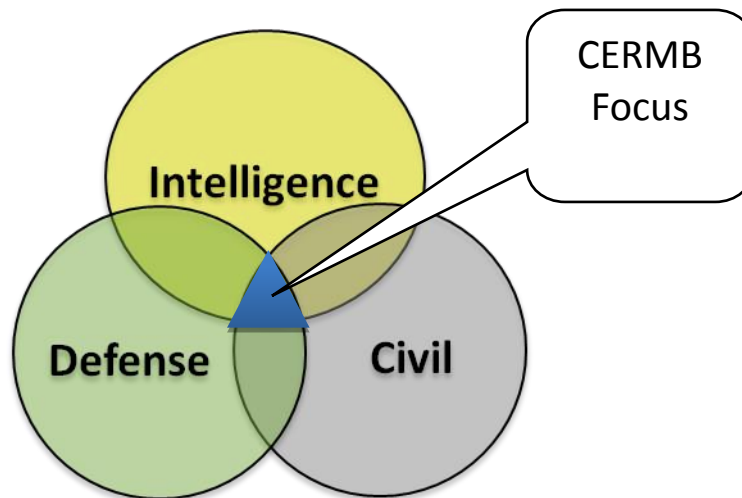
ANNEX J

COMMITTEE ON NATIONAL SECURITY SYSTEMS (CNSS) **ENTERPRISE RISK MANAGEMENT BOARD (CERMB) CHARTER**

1. PURPOSE

This charter defines the mission, membership, responsibilities, duties, and voting process of the CNSS Enterprise Risk Management Board (CERMB). The CERMB is charged with providing oversight¹ for risk management-related activities across the National Security System (NSS) fabric, deferring to the Intelligence Community (IC) Information Security Risk Management Committee (ISRMC) for the TS/SCI fabric and other systems under the sole purview of the DNI. The CERMB will make timely risk management recommendations to the CNSS Committee regarding network and information system interconnections (including cross domain² connections) and access to NSS that impact all three of the Civil, Defense, and Intelligence NSS communities (see Figure 1 for a depiction of the scope and Section 4.1 for a list of issues that fall within this scope). Risk management recommendations will be based on minimum connection standards, risk assessments and operational impacts. The CERMB serves as a forum to share information, raise situational awareness, and ensure consistent risk management by providing a community-wide perspective to assess cross-cutting risks to NSS operations and assets, individuals, other organizations, and the Nation.

FIGURE 1. Federal NSS Communities and Area of CERMB Focus



2. SCOPE

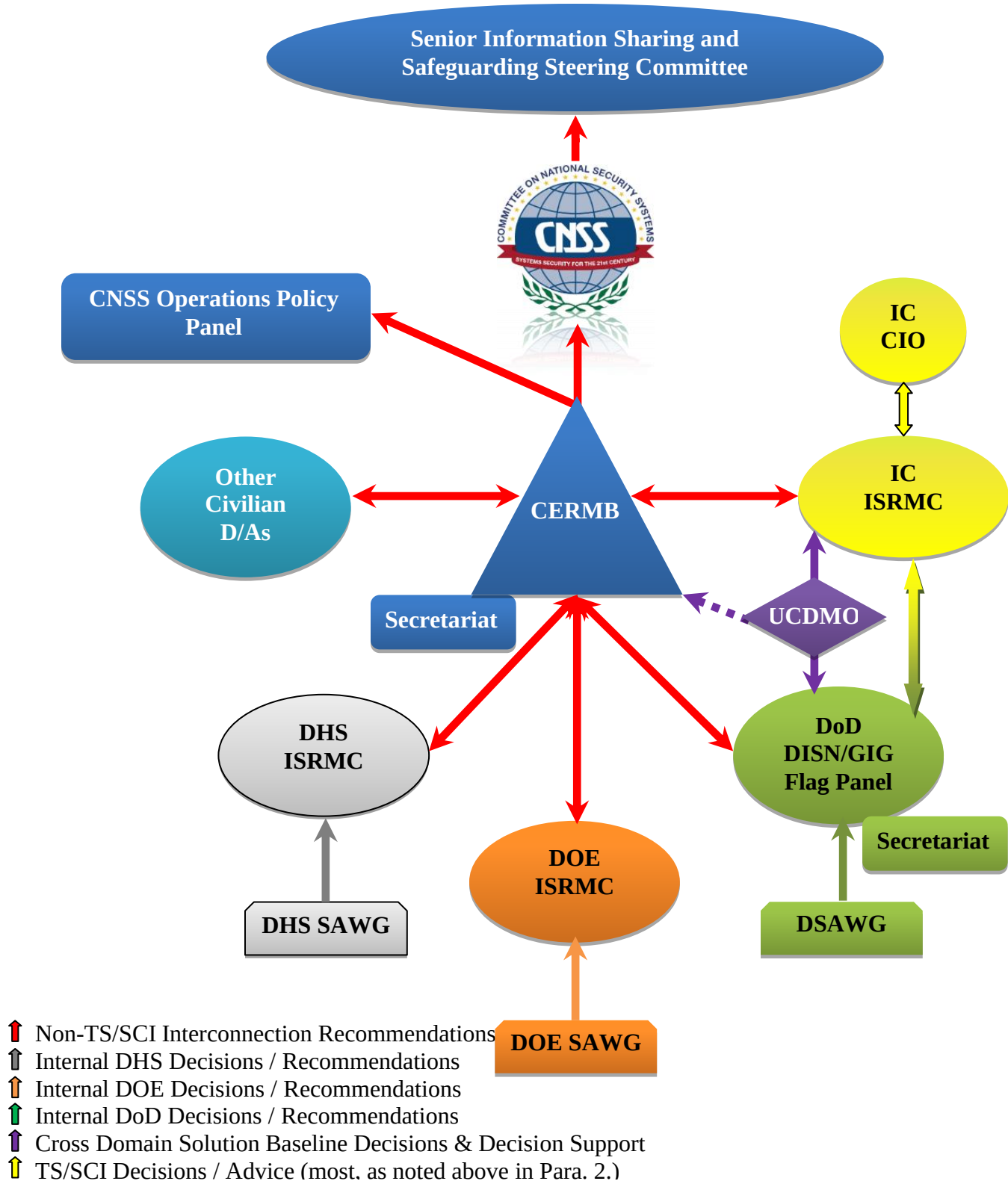
The CERMB has a Federal Government-wide scope for NSS (as defined in (44 U.S. C. 3542(b) (2)) risk management recommendations, oversight, and standards promotion, while deferring to the IC ISRMC for the TS/SCI fabric and other systems under the sole purview of

¹ In this Charter, “oversight” shall refer to the responsibility of monitoring and reporting and may include assessing and making recommendations regarding issues as outlined herein to the appropriate decision-makers

² Connections between differing security domains

the DNI. The CERMB supports harmonized risk management processes by coordinating with the IC ISRMC, the DoD, and Civilian Departments/Agencies (D/As) risk management bodies when assessing cross-cutting risks to NSS operations and assets, individuals, other organizations, and the Nation. The CERMB reports to the CNSS Committee (see Figure 2).

FIGURE 2. Relationships/Recommendations/Decisions/Advice and SME/Support Flow



3. CERMB MEMBERSHIP

- 3.1 Chair: Chaired by a designated government official from a CERMB voting member Department/Agency. Chairmanship rotates on an annual basis between DoD, DNI, and a Non-Title 10/50 Department/Agency. The Committee selects the Chair from the nominees provided by CERMB Voting Members.
- 3.2 Voting Members must be designated government officials with the authority to formally represent Department/Agency interests related to NSS. Voting Member Departments/Agencies:
 - 3.2.1 Department of Defense
 - 3.2.2 Office of the Director of National Intelligence
 - 3.2.3 Central Intelligence Agency
 - 3.2.4 National Security Agency
 - 3.2.5 Department of State
 - 3.2.6 Department of Justice
 - 3.2.7 Department of Energy
 - 3.2.8 Department of Homeland Security
- 3.3 Voting members may invite additional community of interest (COI) representatives, as required, to support agenda topics, in coordination with the CERMB Secretariat as defined in Section 5.4.
- 3.4 Advisor Members: Any CNSS Member or Observer who is not a Voting Member already represented above, may participate as an Advisor Member of the CERMB and may seat a single representative at CERMB meetings. An exception will occur when an Advisor Member is the COI representative for an agenda topic, in which case, the number of seats will be at the discretion of the Chair, but not more than a total of three. The Department of Treasury, Department of Commerce, and the Unified Cross Domain Management Office (UCDMO) will be permanent Advisor Members.
- 3.5 Non-member Entities: The interests of Federal agencies and other organizations with NSS that do not otherwise participate in the CERMB will be represented as follows:
 - 3.5.1 ODNI will represent non-voting IC elements (Specifically including: DEA, DIA, NGA, NRO. Optionally including the IC elements of: DHS, DoD, DOE, FBI, Treasury, USAF, USA, USCG, USMC, and USN).

- 3.5.2 DHS will represent non-voting Non-Title 10/50 Departments/Agencies (e.g., GSA, EPA, EDU, etc.), State, Local, and Tribal governmental organizations.
- 3.5.3 Members acting as designated service providers will represent U.S. Government (USG) interests with respect to NSS for entities that they (the members) sponsor for connection, including foreign and vendor partner organizations.
- 3.6 Clearances: The Chair, Voting and Advisor members (members), Non-member Entities and Subject Matter Experts (SMEs) attending CERMB meetings, must be cleared at a high enough level to ensure full and open discussions.
 - 3.6.1 The CERMB members need to possess a TS/SCI clearance.
 - 3.6.2 The CERMB members' security offices shall send clearance certifications to the NSA Office of Security in order for the CERMB Secretariat to verify the clearances. Copies of the certifications should also be faxed to the CERMB Secretariat.
 - 3.6.3 Non-member Entities, guests, and SMEs attending a CERMB meeting must have the appropriate clearances and need-to-know for the documents and topics under review at the meeting. SME attendance must be approved by the Chair or CERMB Secretariat on the Chair's behalf. Sponsors of guests and SMEs shall ensure compliance with these requirements.

4. RESPONSIBILITIES AND FUNCTIONS

The CERMB is responsible for providing oversight for risk management-related activities across the NSS fabric, deferring to the IC ISRMC for the TS/SCI fabric and other systems under the sole purview of the DNI. In addition, the CERMB may make recommendations for corrective actions based on an assessment of risk. The CERMB will address strategic network issues (e.g., interconnections, cross domain solutions, emerging technologies, connections to foreign partners, network susceptibility to insider threat, etc.) that impact the entire NSS Community. The CERMB shall consider issues as early in the decision cycle as possible and will provide timely feedback to the sponsoring Federal Department(s)/Agency(s). CERMB members should use the criteria listed in Section 4.1 to determine issues for consideration.

- 4.1 Criteria/issues that impact the entire NSS Community include, but are not limited to:
 - 4.1.1 Cross domain connections/solutions using new technology and/or with non-NSS partners for whom there is no current precedent³ for the connection decision

³ Black's Law Dictionary, p. 1059 (5th ed. 1979): "...rule of law established for the first time by a court for a particular type of case and thereafter referred to in deciding similar cases." In the context of unusual connections to/from the NSS, "current precedent" refers to a risk management decision with similar technical, environmental and operational characteristics which has been made recently enough to be relevant as a precedent.

- 4.1.2 Access to NSS from any Federal Department to an organization outside of that Department (including Foreign partner, State, Local, and Tribal) that is not listed in NSD 42, when there is no current precedent for the connection decision
 - 4.1.3 New or unusual interconnections to/from the NSS for which no current precedent exists
 - 4.1.4 Cross cutting issues that a CNSS Voting Member voluntarily raised to the CERMB for a recommendation/consideration
 - 4.1.5 Sites that do not meet minimum CNSS connection standards
- 4.2 The primary functions in support of this overarching responsibility include:
- 4.2.1 Serve as the principal information security and risk management forum for the NSS fabric, deferring to the IC ISRMC for the TS/SCI fabric. The CERMB will, as appropriate, meet jointly with the appropriate Department/Agency risk management body(s) to share risk assessments and recommendations on areas of joint concern, to include cross domain solutions between the Secret and Top Secret fabrics.
 - 4.2.2 Make or delegate risk recommendations for network connections including inter-Department/Agency and foreign information system connections for consideration by the CNSS and appropriate authorities.⁴ The CERMB will provide oversight for the following connection approval categories:
 - 4.2.2.1 Local Connections: Departments/Agencies will exercise approval authority for local connections via their respective risk management bodies (e.g., DoD's DISN/GIG Flag Panel, DHS ISRMC, DOE ISRMC, or IC ISRMC) in accordance with minimum connection approval standards established by the CNSS (e.g., a DoD base connection to SIPRNET).
 - 4.2.2.2 Cross-Organization Interconnections: The CERMB will make a connection recommendation to the CNSS Committee regarding the following interconnections that impact the entire NSS Community:
 - 4.2.2.2.1 Interconnections between a Federal Department/Agency and other governmental but non-Federal organization (such as State government, or Local Police Department).
 - 4.2.2.2.2 Interconnections between a Federal Department/Agency and another country's federal Department (such as Ministry of Defence).

⁴ IAW: NISTSP 800-30, *Risk Management Guide for Information Technology Systems*

- 4.2.2.2.3 Interconnections between a Federal Department/Agency and another country's non-federal organization (e.g., London Metropolitan Police Dept.).
- 4.3 Help resolve CNSS security and risk management policy disputes between Departments/Agencies, brought forward to the CERMB voluntarily by the sponsoring Federal Department/Agency's risk management body.
- 4.4 Make recommendations on cross domain connections that use new technical solutions or reflect unusual circumstances. The responsibility for making recommendations associated with the continued use or additional fielding of well-established (i.e., previously approved in relatively unchanged environments) cross domain solutions, remains with the sponsoring Federal Department/Agency's risk management body. Connect/Disconnect decisions made by Departments/Agencies will be shared with the CERMB for informational purposes only.
 - 4.4.1 Cross domain solutions are a critical aspect of interoperability and the CERMB will partner with the Unified Cross Domain Management Office (UCDMO) to address cross domain issues⁵
 - 4.4.2 On behalf of the Departments and Agencies, the CERMB reviews and makes recommendations regarding conflicts and issues brought forward voluntarily by the sponsoring Federal Department/Agency's risk management body. The CERMB will use their collective knowledge and reach-back to their respective agencies and the IC for emerging threats and risks associated with existing cross domain capabilities and emerging capabilities, the condition of all networks, the demonstrated capabilities and capacities of the relevant Computer Security Incident Response Capability (s), and vulnerabilities that apply to the security posture of cross domain capabilities to make recommendations on the matters presented.
- 4.5. Provide oversight and review authorization decisions to identify lessons learned and/or best practices for operation of enterprise-level systems (used by multiple Federal departments/agencies) and/or networks based on mission impact vs. security risks vs. resource calculations.
- 4.6. May provide recommendations to the CNSS Operations Policy Panel on policy gaps or clarification involving shared risks to include, as appropriate, cross domain connections with other fabrics.
- 4.7. Will provide an update on CERMB activities at each monthly CNSS Committee meeting.

⁵The UCDMO currently provides cross domain support to the DoD and IC. The UCDMO will require re-chartering to also provide support to other non DoD/IC Federal departments/agencies. The expanded scope will require additional non-DoD/IC resources and funding to accommodate the entire NSS community.

- 4.8 Will research, as needed, historical information regarding approved connections provided by existing risk management bodies to inform CERMB recommendations.

5. CERMB DUTIES

5.1 Chair

- 5.1.1 Preside over meetings.
- 5.1.1 Schedule regular and special meetings, as required.
- 5.1.2 Lead CERMB members and advisors, in support of CERMB responsibilities.
- 5.1.3 Represent the CERMB membership to other organizations.

5.2 Voting Members

- 5.2.1 Advocate their respective mission area or COI issues to the CERMB for decision or information
- 5.2.2 Provide SME to facilitate decisions on mission impact, security risks, and resource calculations. SMEs from non-member organizations may participate as appropriate.
- 5.2.3 Represent their Department/Agency or COI when assessing enterprise risks.
- 5.2.4 Provide feedback to their Department/Agency concerning CERMB recommendations.

5.3 Advisor Members

- 5.3.1 Provide subject matter expertise to facilitate decisions on mission impact, security risks, and resource calculations.
- 5.3.2 Represent their organization when assessing enterprise risks.
- 5.3.3 Provide feedback to their COI concerning CERMB recommendations.

5.4 Secretariat

- 5.4.1 Formed by resources and/or SME support provided in equal proportions by each CERMB Voting Member Department/Agency as requested by the CNSS Chair. The CERMB Secretariat will administratively support and technically advise the CERMB Chair and will be managed by the DoD's DISN/GIG Flag Panel Secretariat Manager.
- 5.4.2 Provides risk management and technical advisory support as needed and appropriate. Advises on selection and application of relevant analytical

methodologies, such as risk management methods, to quantify findings and recommendations.

- 5.4.3 Categorizes, characterizes, and packages agenda items for senior leader review/ assessment. Gathers evidence and conducts discussions of complex cyberspace issues. In particular, facilitates efforts to ensure external SMEs give appropriate consideration to their colleagues' various positions on cyberspace issues for which no clear consensus exists.
- 5.4.4 Participates in and contributes to substantive review of SME's findings and recommendations to ensure results are responsive to the questions posed by the CERMB and to ensure all findings and recommendations are communicated clearly and can withstand scrutiny by executive-level reviewers. As needed, also accesses and draws on "back bench" assets to obtain additional information relevant to discussions, typically within tight deadlines, so as not to impede the CERMB's deliberations.
- 5.4.5 Interfaces with the CERMB Chair regarding recommendations. Coordinates all agenda topics and briefings with the Voting and Advisory Members and based on presented evidence, offers technical advice to the Voting Members as needed.
- 5.4.6 Prepares and publishes CERMB meeting minutes and recorded vote sheets. Tracks all CERMB action items. Maintains a historical record of the CERMB presentations, recommendations, and meeting minutes.
- 5.4.7 Provides an update on CERMB activities at each monthly CNSS Committee meeting on behalf of the CERMB Chair.

6. CERMB VOTING PROCEDURES

- 6.1 Pre-Board Coordination. All briefings will be reviewed by the CERMB Secretariat, and presented with the sponsoring member's justification to the Chair as a potential CERMB agenda item.
- 6.2 Quorum. A quorum is composed of the advocate or principal stakeholder for the issue under discussion plus a two thirds majority of the CERMB voting members. For matters pertaining to the protection of intelligence sources, methods, and activities from unauthorized disclosure, the presence of an ODNI representative must be mandatory for quorum.
- 6.3 Voting. Recommendations will be made by consensus, requiring at least 80 percent of the cast votes. When recommendations are not unanimous among CERMB members, the majority recommendation will be provided along with the dissenting opinions.
- 6.4 Electronic Votes. Electronic votes may be conducted by the CERMB, at the discretion of the Chair, when regular meeting schedules do not meet required decision

timelines. Electronic votes will be based on the same supporting evidence and reference material as regularly scheduled CERMB meetings.

- 6.4.1 Voting members will respond to the Secretariat by the deadline with digitally signed votes.
 - 6.4.2 If responses do not meet the quorum requirements by the deadline, the Chair may extend the voting deadline by as much as 5 calendar days to facilitate reaching a quorum.
 - 6.4.3 If, after an extension of the voting deadline and the responses still do not meet the quorum requirements, or there is a dissenting vote, a meeting shall be called by the Chair.
- 6.5 Non-Concurs with CERMB Critical Comments. Non-Concurs with critical comments are forwarded to the CNSS Committee for resolution via standard CNSS 901 resolution processes.

7. MEETINGS

Regular meetings will be scheduled on a quarterly basis. The Chair may also call ad hoc meetings as needed. Meetings will be coordinated with the membership through the Secretariat.

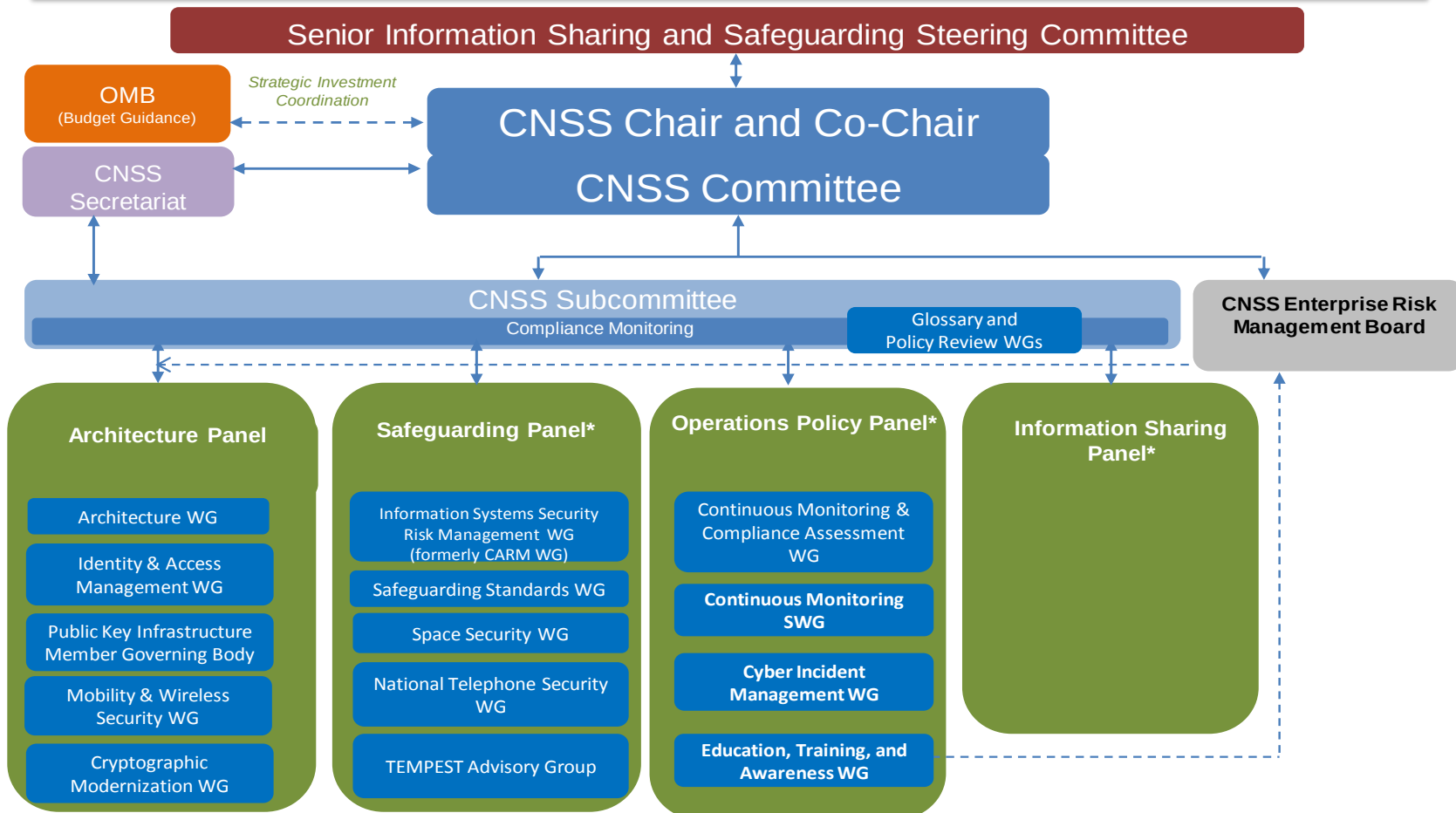
8. CERMB CHARTER REVIEW

This charter will be reviewed annually for accuracy and consistency with applicable references.

ANNEX K



Organizational Structure



*Panels consist of two Co-Chairs, an Alternate Co-Chair, WG Chairs, and Subject Matter Experts